

Ireland and the manufacture or preparation of tobacco grown in Ireland except by persons holding a licence, and on land or premises approved by the Commissioners for the purpose, and for fixing the date of the expiration of a licence, and also for regulating such growth, cultivation, manufacture, or preparation, with a view to securing and collecting any excise duty for the time being payable in respect of tobacco, and for applying thereto any provision of the law relating to excise, or of the Manufactured Tobacco Act, 1863, or any Act amending the same, and, if any person acts in contravention of or fails to comply with any of those regulations, the article in respect of which the offence is committed shall be forfeited, and the person committing the offence shall be liable in respect of each offence to an excise penalty of fifty pounds.

26 & 27 Vict.
c. 7.

2. Notwithstanding anything in any Act, the Commissioners of Inland Revenue may permit any persons to grow tobacco in Ireland for experimental purposes only subject to any special regulations and conditions they think fit, and subject to any allowance in respect of any duty for the time being payable as may be sanctioned by the Treasury.

Power to
authorise
growth of
tobacco for
experimental
purposes.

3. This Act may be cited as the Irish Tobacco Act, 1907.

Short title.

CHAPTER 4.

An Act to extend the Destructive Insects Act, 1877, to all Pests destructive to Crops, Trees, or Bushes.

[4th July 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

I.—(1) The Board of Agriculture and Fisheries may, for the purpose of preventing the introduction into Great Britain of any insect, fungus, or other pest destructive to agricultural or horticultural crops or to trees or bushes, and for preventing the spreading in Great Britain of any such insect, fungus, or other pest, exercise all such powers as may be exercised by the Board in relation to the Colorado beetle under the Destructive Insects Act, 1877 ; and that Act shall apply accordingly as if in that Act the expression " insect " included all such insects, fungi, and other pests, and the expression " crop " included all such crops, trees, and bushes :

Extension of
40 & 41 Vict.
c. 68 to all
pests.

Provided that the Board shall not make an order directing the payment of compensation by any local authority for the removal or destruction of any crop or any trees or bushes unless the local authority consent to make the payment.

56 & 57 Vict.
c. 66.

(2) Section one of the Rules Publication Act, 1893, shall not apply to any order made under the Destructive Insects Act, 1877, or this Act.

(3) This Act shall apply to Ireland as if Ireland were named therein instead of Great Britain and with the substitution of the Department of Agriculture and Technical Instruction for Ireland for the Board of Agriculture and Fisheries.

Short title.

2. This Act may be cited as the Destructive Insects and Pests Act, 1907; and the Destructive Insects Act, 1877, and this Act may be cited together as the Destructive Insects and Pests Acts, 1877 and 1907.

CHAPTER 5.

An Act to re-enact with amendments the Injured Animals Act, 1894. [26th July 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Slaughter of
injured ani-
mals by or by
order of police.

1.—(1) If a police constable finds any animal so diseased or so severely injured or in such a physical condition that it cannot without cruelty be removed, he shall, if the owner is absent or refuses to consent to the destruction of the animal, at once summon a duly registered veterinary surgeon, if any such veterinary surgeon resides within a reasonable distance, and, if it appears by the certificate of such veterinary surgeon that the animal is mortally injured or so severely injured or so diseased or in such a physical condition that it is cruel to keep it alive, it shall be lawful for the police constable, without the consent of the owner, to slaughter the animal or cause it to be slaughtered with such instruments or appliances, and with such precautions, and in such manner, as to inflict as little pain and suffering as practicable, and, if the slaughter takes place in a street or public place, to remove the carcase or cause it to be removed therefrom.

(2) Any reasonable expense which may be incurred by any constable in carrying out the provisions of this Act may be recovered from the owner summarily as a civil debt, and, subject thereto, any such expense shall be defrayed out of the fund from which the expenses of the police are payable in the area in which the animal is found.

Definition of
animal.

2. For the purposes of this Act the word "animal" means any horse, mule, ass, bull, cow, ox, heifer, calf, sheep, goat, or swine.

Short title and
repeal.

3.—(1) This Act may be cited for all purposes as the Injured Animals Act, 1907.

57 & 58 Vict.
c. 22.

(2) The Injured Animals Act, 1894, is hereby repealed.